

## 26SMCV00657 26SMCV00657

County: los-angeles

Division: Civil Law and Motion

Department: I

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The court previously denied defendant's SMS in this malicious prosecution suit. This is the latest in a never-ending battle between these two brothers. In the underlying suit, the court threw out Isaac's case (the court uses first names due to the similarity of the surnames; no disrespect is intended) on the basis of res judicata and collateral estoppel. The Court of Appeal affirmed, using strong language concerning the clear effect of those doctrines as dooming Isaac's case. That led Daniel to file this malicious prosecution action. Isaac then brought the SMS, which was denied. Daniel seeks fees in opposing the motion. Preliminarily, the opposition is late by a day and grossly overlength. The court will overlook the timeliness aspect but STRIKES pages 16-25. As to the evidentiary objections, the court did not rely on Isaac's declaration in making today's ruling, so the objections are MOOT.

A party successfully opposing an SMS is not entitled to fees by right (unlike a party successfully bringing such a motion). The standard for recovery by the opposing party is the same as the standard set forth in Code of Civil Procedure section 128.5—a finding that the motion was frivolous or intended to cause unnecessary delay. (Gerbosi v. Gaims, Weil, West & Epstein, LLP (2011) 193 Cal.App.4th 435.) The first prong (frivolous) is an objective standard; if the motion was in fact frivolous, then a subjective belief that the action was meritorious will not defeat the finding. That is why even a represented party can be subject to this statute. (Isaac was represented during the underlying case.)

The court also notes that there seems to be a questionable proof of service as to the filing of the motion, which suggests that the purpose might

have been solely to delay.

The court need not, and does not, find that the motion was filed solely for purposes of delay. But the court does agree that the motion was frivolous. While the SMS easily met the first prong of the statute—it involved protected activity (filing the underlying suit)—plaintiff here easily defeated the motion on the second prong—“minimal merit.” Given the many, many other cases between these parties, once the court was able to disentangle the procedural posture of the case, this court was able to rule on a pleading motion. And the Court of Appeal had little difficulty finding that the underlying case was already decided (more than once). The SMS was objectively frivolous. That does not mean Daniel will win; only that he might.

The question, though, is procedural. It is not clear that plaintiff complied with the safe harbor requirements of section 128.5.

In *Zarate v. McDaniel* (2023) 97 Cal.App.5th 484, the Court of Appeal discussed the relationship of that statute to the SMS motion by the opposing party. It held that the procedural requirements of that statute apply to a party seeking fees for opposing the SMS. The Zarate Court noted that sometimes that might not be practical and did not address whether in such a case the same safe harbor requirements applied. The theory is that Daniel could have provided Isaac with notice that fees would be sought to give Isaac time to withdraw the SMS. If Isaac did not withdraw the SMS, then the fee motion would be brought. Because Daniel did not comply with the safe harbor provision, and because there is no showing that it was impractical to do so, the motion must be DENIED.